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Case Number: 22STCV16895 Hearing Date: August 11, 2026 Dept: 731

[TENTATIVE] ORDER RE: DEFENDANT/CROSSCOMPLAINANT

WALTON CONTRUCTION, INC.'S NOTICE OF MOTION AND MOTION FOR SUMMARY JUDGMENT
AGAINST PLAINTIFF

Moving Party: Defendant/Cross-Complainant/Cross-Defendant, Walton
Construction, Inc.

Opposing Party: Plaintiff, Jose Jesus Pantoja

Notice: OK

Background Facts

Pleadings

The parties assert competing allegations concerning responsibility for a hazardous sidewalk condition that Plaintiff Jose Jesus Pantoja ("Plaintiff") contends caused his injuries, with each defendant and cross-defendant denying liability and shifting fault to others. The litigation has expanded through multiple cross-complaints and Doe amendments, resulting in a multi-party dispute over negligence, indemnity, contribution, and control of the accident location.

i. Plaintiff's
Complaint

Plaintiff Jose Jesus Pantoja ("Plaintiff")
sues Defendants City of Los Angeles ("the City"), Doe 1 Walton Construction,

Inc. ("Walton Construction" or "Walton"), Doe 2 Davis Construction Plumbing, Inc. ("Davis Construction" or "Davis"), and Does 3-100 pursuant to a May 20, 2022, Complaint alleging counts of Negligence and Dangerous Condition on Public Property under the header of "CAUSE OF ACTION—Premises Liability." (The Complaint previously named Doe 1 Los Angeles Metropolitan Transit Authority (the "MTA") as a Defendant, but Plaintiff dismissed the MTA with prejudice on July 6, 2026, which the Clerk entered on July 7, 2026.)

The claims arise from allegations that on November 17, 2021, Plaintiff tripped and fell on metal plates placed on a public sidewalk at or near East Cesar Chavez Avenue and North Matthews Street. Plaintiff contends Defendants owned, maintained, operated, or controlled the premises and negligently failed to correct or warn of the hazard, causing him serious injuries requiring medical care and resulting in pain, suffering, and related damages.

ii. The
MTA's Cross-Complaint

Cross-Complainant the MTA brings a Cross-Complaint against Cross-Defendants City of Los Angeles and Does 1-10, alleging causes of action for Indemnification, Apportionment of Fault, General Negligence, and Declaratory Relief.

The claims arise from allegations that the MTA is not liable for Plaintiff's injuries and that any dangerous condition or negligence alleged in Plaintiff's Complaint was caused by the City of Los Angeles. The MTA alleges that the City owned, operated, controlled, maintained, supervised, and managed the accident location and created or failed to correct the hazardous condition. The MTA prays that if it is found liable to Plaintiff, such liability would be purely derivative and that it is entitled to complete indemnity, comparative fault allocation, and a judicial declaration of the parties' respective duties and obligations.

According to the record, this Cross-Complaint remains live despite the MTA's dismissal from Plaintiff's Complaint.

iii. Walton
Construction's Cross-Complaint Against the City and the MTA

Cross-Complainant Walton Construction, Inc. ("Walton") brings an April 10, 2025, Cross-Complaint against Cross-Defendants City of Los Angeles, Los Angeles County Metropolitan Transportation Authority, and Roes 1-10 asserting causes of action for Equitable Indemnity, Apportionment of Fault, Contribution, and Declaratory Relief.

The claims arise from allegations that although Walton denies liability for Plaintiff Jose Jesus Pantoja's asserted injuries, any negligence or fault found against Walton would be derivative of negligence by the City, LA MTA, or the Roe Cross-Defendants. Walton alleges that Cross-Defendants owned, maintained, controlled, supervised, or otherwise bore responsibility for the conditions described in Plaintiff's Complaint, and that their acts or omissions were the proximate cause of Plaintiff's alleged injuries. Walton further alleges that Cross-Defendants breached primary duties of care, acted as agents or joint actors of one another, and are required to indemnify Walton for any judgment, reimburse Walton for any payments exceeding its comparative share of fault, and submit to a judicial declaration clarifying indemnity, contribution, and fault allocation obligations among all parties

iv. Walton

Construction's First Amended Cross-Complaint Against Davis, the City, and the MTA

Walton Construction also brings a First Amended Cross-Complaint ("FACC") against Cross-Defendants Davis Construction and Roes 1-10, asserting causes of action for Express Indemnity, Breach of Contract, Equitable Indemnity, Apportionment of Fault, Contribution, and Declaratory Relief.

The claims arise from allegations that Walton Construction was performing construction work at or near the accident location pursuant to a 2021 subcontract with Davis Construction, under which Davis allegedly agreed to defend, indemnify, and hold Walton harmless from claims arising out of Davis's work. Walton Construction alleges Davis was performing plumbing and wet-utility work near the site of Plaintiff's fall and that Davis Construction failed to accept tender of defense and indemnity. Walton Construction denies liability for Plaintiff's injuries

and asserts that any alleged dangerous condition was caused by Plaintiff, Davis, or other Roe parties. Walton seeks indemnity for any amount it may be compelled to pay, reimbursement of defense costs, apportionment of fault, and a judicial declaration regarding all parties' defense and indemnity obligations.

The Court notes that the First Amended Cross-Complaint appears to act as an addition to rather than replacement of the prior Walton Construction Cross-Complaint against the City and the MTA.

v. Davis
Construction's Cross-Complaint

Last, Davis Construction brings a Cross-Complaint against Walton Construction and Roes 1-10 alleging a cause of action for Declaratory Relief and Comparative Indemnity.

The claims arise from allegations that Davis denies all liability for Plaintiff's injuries and contends that Walton Construction and Roe Cross-Defendants negligently maintained, operated, and controlled the sidewalk where Plaintiff fell on November 17, 2021. Davis alleges that any liability on its part would be derivative of negligence by Walton or other Roe Cross-Defendants. Davis seeks a judicial declaration that Cross-Defendants must indemnify Davis for any judgment entered against it, and requests allocation of fault proportionate to Cross-Defendants' comparative negligence.

Motion Before the
Court

Now before the Court is Defendant Walton Construction's opposed, April 28, 2026, motion for summary judgment.

Motion for Summary
Judgment

a. Preliminary
Considerations

i. Late-Filed

Opposition

Walton Construction's motion is set for hearing on August 11, 2026. Consequently, the opposition to Walton's motion was due on Wednesday, July 22, 2026, 20 days prior to the hearing. (Code Civ. Proc., § 437c, subd. (b)(2).) Plaintiff, however, filed an opposition on July 29, 2026, 13 days prior to the hearing and one week late. Alongside Plaintiff's opposition, Plaintiff filed a request for consideration of the opposition on a showing of good cause pursuant to Code of Civil Procedure section 437c, subd. (b)(2). Walton, in turn, filed its reply on July 31, 2026, along with an objection to the late filing of the opposition, arguing no good cause has been shown.

After review, the Court determines to proceed on the merits.

First, the Court accepts Plaintiff's counsel's representation that "[a]s a result of [a] calendaring error, Plaintiff's Opposition was not filed within the time prescribed by Code of Civil Procedure section 437c" (Jul. 29, 2026, Request to Consider Late Filing, Azzizadeh Decl., ¶ 8.) Such a representation from counsel would be sufficient for mandatory relief pursuant to Code of Civil Procedure section 473, subdivision (b). (See, e.g., *Martin Potts & Associates, Inc. v. Corsair, LLC* (2016) 244 Cal.App.4th 432, 439.) The Court accepts such representations as good faith reasons for why the opposition was filed late, particularly where the effect of the inadvertence described by counsel would be to punish the client, Plaintiff.

Second, here, Walton replied on the merits. Defective notice may be waived when a party appears and argues on the merits (see, e.g., *Arambula v. Union Carbide Corp.* (2005) 128 Cal.App.4th 333, 343) and may moreover be waived unless the objecting party requests a continuance or shows prejudice from defective notice (*Carlton v. Quint* (2000) 77 Cal.App.4th 690, 697; *Reedy v. Bussell* (2007) 148 Cal.App.4th 1272, 1288), neither of which Walton Construction shows here.

ii. Lack

of Separate Statement to Support Plaintiff's New Facts and Evidence

While not raised as an issue in

Walton Construction's reply, Plaintiff's papers submit new facts and supporting evidence in opposition to summary judgment while wholesale failing to include those facts and evidence in the opposition's separate statement, which limits itself to responding to Walton's undisputed material facts. (See July 29, 2026, Separate Statement [responding to undisputed material facts advanced by Walton but failing to include additional material facts in support of Plaintiff's opposition arguments].)

This is a serious defect though it presents a discretionary question for the Court.

The Code of Civil Procedure

specifically provides that "[t]he opposition papers shall include a separate statement that responds to each of the material facts contended by the moving party to be undisputed, indicating if the opposing party agrees or disagrees that those facts are undisputed." (Code Civ. Proc., § 437c, subd. (b)(3).) California Rules of Court, rule 3.1350(e) reinforces this requirement by listing the separate statement as one of the required documents in the opposition package, and rule 3.1350(f) prescribes a specific two-column format in which the opposing party must unequivocally state whether each fact is "disputed" or "undisputed," describe the nature of any dispute, and provide exhibit, title, page, and line number citations to the supporting evidence.

However, the Code also provides

that "[f]ailure to comply with this requirement of a separate statement may constitute a sufficient ground, in the court's discretion, for granting the motion" (Code Civ. Proc., § 437c, subd. (b)(3)), connoting discretionary relief, which the Court declines to exercise here. Plaintiff's points and authorities direct the Court sufficiently to the facts and evidence in support of Plaintiff's position, thus serving in lieu of a separate statement, and Walton failed to object to the defect. Moreover, California courts have held that "granting a motion for summary judgment based on a procedural error by the opposing party is equivalent to a sanction terminating the action in favor of the other party," requiring a showing of willfulness or prior abuse. (*Security Pacific Nat. Bank v. Bradley* (1992) 4 Cal.App.4th 89, 97.) Such willfulness and prior abuse are not apparent in the record, nor are they advocated for in the parties' papers.

Accordingly, the Court considers

Plaintiff's opposition evidence.

b. Evidentiary

Objections

Opposition Objections, Not Ruled On

(Code Civ. Proc., § 437c, subd. (q)): Objection Nos. 1-5.

Opposition Objections, Sustained: None.

Opposition Objections, Overruled: None.

c. Legal

Standard

A motion for summary judgment shall be granted if all the papers submitted show that there is no triable issue as to any material fact for trial or that the moving party is entitled to a judgment as a matter of law. (Code of Civ. Proc., § 437c, subd. (c).) A party may also seek summary adjudication of select causes of action, affirmative defenses, claims for damages, or issues of duty, which may be made by a standalone motion or as an alternative to a motion for summary judgment and proceeds in all procedural respects like a motion for summary judgment, but which must completely dispose of the challenged cause of action, affirmative defense, claim for damages, or issue of duty. (Code Civ. Proc., § 437c, subds. (f)(1)-(2), (t).)

The moving party bears the initial burden of production to make prima facie showing no triable material fact issues. (*Aguilar v. Atlantic Richfield Co.* (2001) 25 Cal.4th 826, 850.) This burden on summary judgment or adjudication "is more properly one of persuasion rather than proof, since he must persuade the court that there is no material fact for a reasonable trier of fact to find, and not to prove any such fact to the satisfaction of the court itself as though it were sitting as the trier of fact." (*Id.* at p. 850, fn. 11.) If the moving party meets this burden, the burden shifts to the opposing party to make a rebuttal prima facie showing that a triable issue of material fact exists. (*Id.* at p. 849.)

Where a defendant seeks summary judgment or adjudication, the defendant must show that either "one or more

elements of the cause of action, even if not separately pleaded, cannot be established, or that there is a complete defense to that cause of action.” (Code Civ. Proc., § 437c, subd. (o)(2).) A defendant may satisfy this burden by showing that the claim “cannot be established” because of the lack of evidence on some essential element of the claim. (Union Bank v. Superior Court (1995) 31 Cal.App.4th 574, 590.) Once the defendant meets this burden, the burden shifts to the plaintiff to show that a “triable issue of one or more material facts exists as to that cause of action or defense thereto.” (Ibid.) “[I]n ruling on motions for summary judgment courts are to “liberally construe the evidence in support of the party opposing summary judgment and resolve doubts concerning the evidence in favor of that party.” [Citations].” (Cheal v. El Camino Hospital (2014) 223 Cal.App.4th 736, 760.).

d.

Discussion

Before addressing the merits of Walton Construction’s motion, the Court briefly addresses the nature of the counts / causes of action alleged in Plaintiff’s May 20, 2022, Complaint. Plaintiff’s Complaint states a single “CAUSE OF ACTION—Premises Liability” divided into counts for Negligence and Dangerous Condition on Public Property. (Complaint, p. 4.) The Court reads such a division as two separate theories for liability.

Defendant Walton Construction reads the Complaint as alleging a single claim for Premises Liability premised on negligence and dangerous condition theories and seeks summary judgment of Plaintiff’s ‘claim’ against him on the grounds that no triable issues exist as to those claims because evidence shows that (1) Walton Construction owed no duty to Plaintiff, (2) Walton’s conduct was not a proximate cause for Plaintiff’s damages, and (3) the condition which led to Plaintiff’s injuries—a metal plate on a public sidewalk on which Plaintiff tripped and fell—was open, obvious, and avoidable as a matter of law, defeating Plaintiff’s claims. (Motion, pp. 8-11, 11-13, 13-16.)

The Court addresses each argument in turn.

i. Legal

Standards for Claims

1. First

Count, Negligence

"To succeed in a negligence action, the plaintiff must show that (1) the defendant owed the plaintiff a legal duty, (2) the defendant breached the duty, and (3) the breach proximately or legally caused (4) the plaintiff's damages or injuries. [Citation.]" (Thomas v. Stenberg (2012) 206 Cal.App.4th 654, 662.) "The elements of a cause of action for premises liability are the same as those for negligence. Accordingly, the plaintiff must prove, a legal duty to use due care, a breach of such legal duty, and the breach as the proximate or legal cause of the resulting injury." (Jones v. Awad (2019) 39 Cal.App.5th 1200, 1207.)

2. Second

Count, Dangerous Condition on Public Property

Except as provided by statute, a public entity is liable for injury caused by a dangerous condition of its property if the plaintiff establishes that the property was in a dangerous condition at the time of the injury, that the injury was proximately caused by the dangerous condition, that the dangerous condition created a reasonably foreseeable risk of the kind of injury which was incurred, and that either:

(a) A negligent or wrongful act or omission of an employee of the public entity within the scope of his employment created the dangerous condition; or

(b) The public entity had actual or constructive notice of the dangerous condition under Section 835.2 a sufficient time prior to the injury to have taken measures to protect against the dangerous condition.

(Gov. Code, § 835.)

ii. Summary

Judgment Based on Open, Obvious, and Avoidable Condition

Walton argues its evidence shows a

lack of triable issues as to whether Plaintiff's injury involved an open, obvious, and avoidable danger, cutting off liability to Walton. (Motion, pp. 12-16.)

In support of this position, Walton argues that its evidence shows that, among other things, Plaintiff knew about the existence of the ongoing Project prior to the accident, that Plaintiff had seen and walked on the metal plate before, that Plaintiff had walked over the metal plate at least 10 to 15 times prior to the date of injury, and that Plaintiff could have crossed the street to use a sidewalk without dangers posed by the steel plate. (Motion, p. 15, citing Motion, Separate Statement, Undisputed Material Fact ("UMF") Nos. 31-39, in turn citing Motion, Appendix of Evidence, Ex. B at passim [see references in UMFs].)

Generally, if a danger is so obvious that a person could reasonably be expected to see it, the condition itself serves as a warning, and the landowner is under no further duty to remedy or warn of the condition. (Jacobs v. Coldwell Banker Residential Brokerage Co. (2017) 14 Cal. App. 5th 438, 447 (Jacobs), citation omitted.) In that situation, owners and possessors of land are entitled to assume others will "perceive the obvious" and take action to avoid the dangerous condition. (Ibid., citation omitted.)

An exception to this general rule exists when "it is foreseeable that the danger may cause injury despite the fact that it is obvious (e.g., when necessity requires persons to encounter it)." (Ibid., citation omitted.) In other words, while the obviousness of the condition and its dangerousness may obviate a duty to remedy or warn of the condition in some situations, such obviousness will not negate a duty of care when it is foreseeable that, because of necessity or other circumstances, a person may choose to encounter the condition. (Ibid., citation omitted; see, e.g., Osborn v. Mission Ready Mix (1990) 224 Cal.App.3d 104, 109-110, 123 [trucker was injured when he fell walking over a demolished concrete ramp, which was the only means of reaching a silo for delivery of materials, with the court noting that the worker's "employment required him to pass across this area in order to complete his work"].)

Here, the Court is satisfied that for summary judgment purposes, Plaintiff is shown by the above referenced evidence—against which Plaintiff filed no objection—to have encountered a condition that, while

alleged as dangerous by Plaintiff, was of an open, obvious, and avoidable nature, where Plaintiff had seen and walked over the dangerous condition more than ten times and could have crossed the street to avoid the danger.

Walton having carried its burden on summary judgment, the burden shifts to Plaintiff to establish triable facts as to the open, obvious, and avoidable theory advanced by Walton. Plaintiff fails in this task.

Critically, Plaintiff admits: "Plaintiff does not dispute that his deposition testimony includes admissions that he had encountered the plate many times before and was looking down at the time of the fall. Those admissions matter, and Plaintiff's counsel should not understate them as they present real exposure on the open-and-obvious and comparative-fault fronts and should be addressed head-on with the Court, not minimized." (Opposition, p. 8, emphasis added.) Plaintiff's briefing thus appears to confirm the parties' agreement on the applicability of the doctrine advanced by Walton.

Separately, the Court finds insufficient merit to Plaintiff's arguments for why the open and obvious doctrine is mitigated or undercut here. Plaintiff first argues that the doctrine negates only the duty to warn of a dangerous condition but not the duty to remedy that condition. (Opposition, 8:15-26.) However, the face of Jacobs is clear: If a danger is so obvious that a person could reasonably be expected to see it, the condition itself serves as a warning, and the landowner is under no further duty to remedy or warn of the condition. (Jacobs, *supra*, 14 Cal. App. 5th at p. 447, emphasis added.) Second, Plaintiff attempts to create a triable issue by arguing that the lighting on the night of the injury affects the question of whether the danger was clear and obvious. The Court finds no merit to this argument when Walton's evidence shows Plaintiff walking over the steel plate more than ten times and Plaintiff has not clarified what role lighting would have played on the night of the incident to distinguish that walk over the steel plate from the others, as well as a host of related questions. Third, Plaintiff reiterates the 'different types of duty' argument and adds that the availability of an alternative route by crossing the street is a fact showing issues relating to comparative fault, which must go to a factfinder. The Court again reiterates that Jacobs discusses elimination of duty altogether and disagrees with Plaintiff as to the applicability of comparative fault. Comparative fault apportions fault after duty and breach

have been established, whereas the open and obvious doctrine eliminates duty altogether before reaching damages apportionment. Even if, as argued by Plaintiff, comparative fault is a decision for the trier of fact, such a question is irrelevant to whether duty has been established for summary judgment purposes.

Plaintiff thus fails to carry his burden on summary judgment, and relief is appropriate in favor of Walton Construction.

iii. Summary

Judgment Based on No Duty or No Causation

Having disposed of this motion on other grounds, the Court need not reach Walton's other arguments in support of no duty to Plaintiff or Walton's arguments in support of no causation vis-à-vis Plaintiff's injuries. (Motion, pp. 8-11, 11-13.)

e. Conclusion

Defendant Walton Construction, Inc.'s motion for summary judgment is GRANTED.

Defendant Walton Construction, Inc. is ordered to give notice.

Parties who intend to submit on this tentative must send an email to the court at indicating intention to submit on the tentative as directed by the instructions provided on the court website at www.lacourt.org. If the department does not receive an email indicating the parties are submitting on the tentative and there are no appearances at the hearing, the motion may be placed off calendar. If a party submits on the tentative, the party's email must include the case number and must identify the party submitting on the tentative. If the parties do not submit on the tentative, they should arrange to appear remotely.